

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend the sewer district in the town of Colrain.

PETITION OF:

NAME:

Paul W. Mark

DISTRICT/ADDRESS:

*Berkshire, Hampden, Franklin and
Hampshire*

SENATE No.

By Mr. Mark, a petition (accompanied by bill) (subject to Joint Rule 12) of Paul W. Mark for legislation to amend the sewer district in the town of Colrain. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend the sewer district in the town of Colrain.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 124 of the acts of 1997 is hereby further amended by striking out
2 section 9 and inserting in place thereof the following section:-

3 Section 9. The district shall, after the acceptance of this act as aforesaid, elect by ballot,
4 either at the same meeting at which this act shall have been accepted, or thereafter at an annual
5 meeting or at a special meeting called for the purpose, five persons, inhabitants of and voters in
6 the district, to hold office, two until the expiration of three years, two until the expiration of two
7 years, and one until the expiration of one year, from the day of the next succeeding annual
8 district meeting, to constitute a board of sewer commissioners; and at every annual district
9 meeting following such next succeeding annual district meeting, such commissioners as are
10 elected shall be elected by ballot for the term of three years to fill those expired terms. The date
11 of the next annual meeting shall be fixed by by-law or by vote of the board of sewer
12 commissioners, but in no event shall it be later than 15 months subsequent to the date on which

the sewer commissioners were first elected. All authority granted to the district by this act, except sections 4 and 5, and not otherwise specifically provided for, shall be vested in said board of sewer commissioners, who shall be subject, however, to such instructions, rules and regulations as the district may by vote impose. At the meeting at which said sewer commissioners are first elected and at each annual district meeting held thereafter, the district shall elect by ballot, each for a term of one year, a clerk and a treasurer of the district. The treasurer shall not be a sewer commissioner and shall give bond to the district in such an amount as may be approved by said sewer commissioners and with a surety company authorized to transact business in the commonwealth as surety. A majority of said sewer commissioners shall constitute a quorum for the transaction of business. Any vacancy occurring in said board from any cause may be filled for the remainder of the unexpired term by said district at any legal meeting called for the purpose. No money shall be drawn from the treasury of the district on account of its sewer works except upon a written order of said sewer commissioners or a majority of them, or take any other vote or votes in relation thereto.

SECTION 2. This act shall take effect upon its passage.